

Jitesh Sharma vs State on 12 March, 2020

Author: Vibhu Bakhru

Bench: Vibhu Bakhru

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ BAIL APPLN. 338/2020

JITESH SHARMA

..... Petitioner

Through Mr Gaurav Kochar, Mr Dollar Jain,
Advocates.

versus

STATE

..... Respondent

Through: Ms Kusum Dhalla, APP for State.

SI Kiran Pal, P.S. Jagat Puri.

CORAM:

HON'BLE MR. JUSTICE VIBHU BAKHRU

ORDER

% 12.03.2020

1. The petitioner has filed the present petition, inter alia, seeking bail in connection with FIR No. 293/2017 under Sections 304-B/498-A/34 of the IPC and Sections 3/4 of Dowry Prohibition Act, 1961 registered with P.S. Jagat Puri.

2. The said FIR was registered at the instance of the mother of the deceased. The marriage of the petitioner was solemnized with the daughter of the complainant on 16.11.2016 as per Hindu rites. It is alleged that the petitioner and his family had been harassing the deceased for dowry and had demanded a car (Nissan Duster). He also alleged that after about four months of the marriage, they (the petitioner and his family) had poured kerosene oil on the deceased and had attempted to kill her. She had made a PCR call in that regard.

3. The status report indicates that, in fact, a PCR Call was made on 29.04.2017 and the same was recorded as DD No. 58-A. The said call was regarding the harassment faced by the deceased from her in-laws.

4. The complainant also alleged that on 07.10.2017, the family members of the petitioner had demanded an XUV Car as dowry and this was informed to her when her daughter had gone to her matrimonial house on the occasion of Karvachauth. Two days later; that is, on 09.10.2017, the complainant's younger daughter informed her that her daughter had died.

5. The status report indicates that all material witnesses have been examined. In all, seventeen witnesses out of thirty proposed to be examined by the prosecution, have been examined. The petitioner has been in custody for over two-and-a-half years. Considering the above, this Court is of the view that it would be apposite to release the petitioner on bail on his furnishing a personal bond

in the sum of 25,000/- with two sureties of the equivalent amount to the satisfaction of the trial court. It is so directed.

6. This is also subject to the following conditions:-

- a) That the petitioner shall not leave the National Capital Territory of Delhi without the prior permission of the concerned Trial Court;
- b) That the petitioner shall appear before the Trial Court on all dates of hearings;
- c) The petitioner shall mark his presence at the concerned police station (PS having jurisdiction of the place where he resides) on first Monday of every calendar month.

7. The petition is allowed in the aforesaid terms.

8. Order dasti under the signature of Court Master.

VIBHU BAKHRU, J MARCH 12, 2020/pkv